

<https://babel.hathitrust.org/cgi/pt?id=uva.x030752226&seq=456>

Transcribed from HathiTrust, uva.x030752226, seq 456-462 (printed pp. 450-456), read in the browser on 2 October 2026. This is not the page the site serves: it refuses an automated request, so what is filed is the text layer the page carries, taken as it stands. Where the transcript and the printed page could differ the printed page governs; the annotation in paper/sources.bib says which passages were read against the page image.

Acts of the General Assembly of the State of Virginia, Session of 1930 (ch. 167)

[Page 450, seq 456]

CHAP. 167. An ACT to add a new chapter to the Code of Virginia to be designated as chapter 109-a thereof; and to add fourteen new sections to the Code of Virginia, numbered 2773-a to 2773-n, both inclusive, relating to the organization and government of counties, and providing for complete forms of county organization and government different from that provided for in article seven of the Constitution of Virginia, sections 110-115 inclusive thereof, to become effective in any county of Virginia, having a population of more than 500 inhabitants to the square mile when submitted to the qualified voters thereof in an election held for such purpose and approved by the majority of those voting thereon, as is authorized by section 110 of the Constitution; providing for such election for the redistricting of such

[Page 451, seq 457]

1930] 451 ACTS OF ASSEMBLY

counties and providing when and under what conditions the territory in such counties may be annexed by any city. [H B 342] Approved March 20, 1930

1. Be it enacted by the general assembly of Virginia, That the Code of Virginia be amended by adding thereto a new chapter numbered one hundred and nine-a, and that fourteen new sections be added to the Code of Virginia numbered twenty-seven hundred and seventy-three-a to twenty-seven hundred and seventy-three-n, both inclusive, to read as follows: Sections 2773-a. Subject to the election hereinafter provided, the provisions of this chapter shall be applicable to any county having a population of five hundred inhabitants or more to the square mile, as shown by the last United States census. Subject to the approval of a majority of the qualified voters of any such county who vote thereon, either of the two forms of the county organization and government provided in this chapter may be adopted.

(A) MODIFIED COMMISSION PLAN

Section 2773-b. In every county adopting this plan, the legislative, executive and administrative powers, theretofore exercised by board of supervisors of such county and such as may be thereafter conferred by law, shall be exercised by a board constituted of five members, to be known as the board of commissioners and hereinafter referred to as the board, elected for a term of four years; provided, however, that the county officers whose elections by popular vote is provided for by section one hundred and ten of the

Constitution, the trial justice, or county judge, and the school superintendent and school board of such county shall continue as provided by law with all the power, authority and duties conferred by law upon such officers, court and school board at the time this act takes effect and such other powers and duties as may thereafter be conferred upon them by general law. With the exception of the officers hereinbefore mentioned, all other officers of said county shall be appointed by the said board of commissioners. The board shall elect one of its members, who shall be designated as chairman, to preside over the meetings of the said board. He shall possess all the rights and duties of a member of the board but shall have no veto power. The board shall be elected at large or by districts as may be determined by the votes of such county in the election provided for in this chapter. The board shall divide the administration of the county into departments and determine and prescribe the jurisdiction and duties of each department and the powers and duties of the officers and employees therein and make such rules and regulations for the conduct of each department as it may deem desirable for the purpose of securing efficiency and economy in administration.

Section 2773-c. The board shall, from time to time, designate and assign the particular administrative duties of each of its members and

[Page 452, seq 458]

452 [VA. ACTS OF ASSEMBLY

each member of the board shall be designated for particular service as the head of a department, or departments, over which he shall have special oversight and direction, subject to the provisions of this chapter and the ordinances of the board. Such designations and assignments may be changed whenever desired by the board and during any temporary disability or absence of a member, the board may designate another member to act until such disabled or absent member shall resume his duties.

Section 2773-d. The board shall, at its first meeting, or as soon thereafter as practicable, determine what appointive officers are necessary for the proper and efficient administration of the county and shall prescribe the qualifications, powers and duties of such officers and fix their compensation. The board shall forthwith, or as soon as desirable, make appointments to fill such offices. All other employees of the county shall be employed by the board, or under its authority; any officer or employee whether appointed by the board or under its authority, may be removed by the board at any time except as specially provided by law. The member designated as the head of a department shall have the power of removal of any officer or employee in such department.

Section 2773-e. The chairman shall attend the meetings of the board and preside thereat. It shall be the duty of the chairman to acquaint himself with the conduct of each of the county departments (in addition to those under his immediate supervision) and from time to time to report to the board with such recommendations as he shall deem desirable.

(B) COUNTY MANAGER PLAN

Section 2773-f. Under the county manager plan all of the legislative powers of the county, however conferred or possessed by it, are hereby vested in a board of five members to be known as the county board. The members of said board shall be elected in the manner hereinafter provided, and for terms of four years. It shall be the duty of the county board to

appoint the county manager, who need not be a resident of the county or of the State. The county board shall elect one of its members as chairman, who shall preside over its meetings. The chairman shall be elected by the board annually and any vacancy in the office shall be filled by the board for the unexpired term. The chairman shall have the same powers and duties as other members of the board with a vote but no veto, and shall be the official head of the county. With the exception of those officers whose election is provided for by popular vote in section one hundred and ten of the Constitution and the trial justice or county judge, members of the board shall be the only elective county officials. The county board shall be a body corporate and as such shall have the right to sue and be sued in the same manner as is now provided by law for boards of supervisors.

Section 2773-g. The administrative and executive powers of the county, including the power of appointment of all officers and employees

[Page 453, seq 459]

1930] 453 ACTS OF ASSEMBLY

whose appointment or election is not otherwise provided by law, are vested in an official known as the county manager, who shall be appointed by the county board at its first meeting or as soon thereafter as practicable. He shall receive such compensation as shall be fixed by the board. The officers whose election by popular vote is provided for in section one hundred and ten of the Constitution and the trial justice or county judge, the school board and the superintendent of schools shall not be subject to appointment but shall be selected in the manner prescribed by law. The heads of all departments other than those hereinbefore referred to and excepted from the provisions of this paragraph shall be selected by the county board.

Section 2773-h. In addition to other duties as are or may be prescribed by law or directed by the board, the county manager shall, each year, by February first, prepare and submit to the board a tentative budget prepared in accordance with the provisions of law in effect governing the preparation of the county budget, and showing in detail the recommendations of the county manager for expenditures on each road and bridge or for other purposes. Prior to April first, but not thereafter, the board may alter, amend or change any item reported by the county manager, but in event of the failure of the board to act thereon, the tentative budget as prepared and submitted by the county manager shall be deemed the county budget and be in full force and effect, subject to the provisions of law as to the county budget. After the county budget has become effective, no changes shall be made in the allocations of funds as therein made, unless such change is recommended by the county manager and approved by the board, provided, that in no event shall any change of more than ten per centum be made in any allocation. The county manager shall be the executive and administrative officer of the county in all matters relating to the public roads and bridges of the county, and the other public works and business of the county, except public schools, and shall have general supervision and charge of all construction and maintenance of the public roads, bridges and landings of the county, and all public works and business of the county, except public schools, and the purchase of all supplies, equipment and materials for the roads, bridges and landings and other public works and business of the county, and the employment of all superintendents, foremen and labor

therefor. The county manager shall keep the board advised as to the financial condition of the county, and at each regular meeting of the board he shall present to the board an itemized statement of all expenditures made by him since his last report, and on or before July fifteenth of each year shall file with the clerk of the board an itemized statement showing the amount expended on each road, bridge or for other purposes for the year preceding, ending June thirtieth. The term of office of such county manager shall expire on December thirty-first of each year, but, except as hereinafter provided, he shall be notified at least sixty days before the expiration of the year if his

[Page 454, seq 460]

454 [VA. ACTS OF ASSEMBLY

services are not desired for the ensuing year. He shall receive such annual salary as the board may prescribe, payable in monthly instalments from county funds. He shall devote his full time to the performance of the duties imposed on him by law, and the performance of such other duties as may be directed by the board. The board may at any time remove the county manager for neglect of duty, malfeasance or misfeasance in office, or incompetency.

Section 2773-i. The board, by a majority vote of all the members elected, may abolish any board, commission, or officer of such county except the school board, school superintendent and trial justice, and the officers elected by popular vote provided for in section one hundred and ten of the Constitution, and may delegate and distribute the duties, authority and powers of the boards, commissions, or officers abolished, to the county manager or to any other officer of the county it may think proper. In the event of the abolition of any such board, commission, or office, those to whom the duties thereof may be delegated or distributed, shall discharge all of the duties, exercise all of the powers and authorities, and both they and the county for which they were appointed, or by whom they were employed, shall enjoy the immunities and exemptions from liability or otherwise that were enjoyed by the abolished boards, commissions, or offices, prior to the adoption of the county manager plan of government, except in so far as such duties, powers, authority, immunities and exemptions have been or hereafter may be changed according to law.

(C) PROVISIONS APPLICABLE TO EITHER FORM OF COUNTY GOVERNMENT

Section 2773-j. Except as modified by the preceding sections in this chapter, in counties adopting either plan of government provided for herein, the board shall have, possess, and exercise the general management of the affairs of the county, and in addition to such powers and duties as are designated and imposed by this chapter, shall exercise and perform all of the powers and duties now authorized or imposed by general law or special act on the board of supervisors of such county in so far as they are not inconsistent with the provisions of this chapter and shall have all the powers conferred by general law on city councils.

Sections 2773-k. Unless otherwise provided in the election hereinafter provided for, the members of the board shall be elected from the county at large and not by districts. Subject to the result of such election, the magisterial districts in such counties are hereby abolished for all purposes and thereafter the county shall be operated as a unit. In the event that the majority of those voting thereon decide that the county board shall be elected by districts,

the judge of the circuit court of said county shall, within thirty days thereafter, divide the said county into five election districts and by order duly entered upon the minute book of the said court, fix and determine the metes and bounds of each of said districts, having in mind that in the establishment of such districts, they shall be made as nearly equal as possible as to population, without dividing the thickly settled communities. In case of election

[Page 455, seq 461]

1930] 455 ACTS OF ASSEMBLY

by districts, the members of the board shall be duly qualified voters and residents of the districts they respectively represent and one shall be elected by the qualified voters of each district. In case of a decision to abolish the districts, the members of the board shall be qualified voters of the county. Removal from the county or district from which elected shall forthwith vacate the office held by any member.

Section 2773-l. When a county has once adopted one of the forms of government provided for in this chapter, thereafter no part of its territory may be annexed by any city unless the whole county be annexed. In such latter case the county shall not be annexed until the question of annexation has been first submitted to a referendum of the voters of such county and approved by a majority of those voting thereon.

Section 2773-m. The provisions of this chapter shall not become effective in any county until there has been submitted to the qualified voters thereof, in an election held for such purpose, the questions as to whether the form of its government shall be changed, as to which form of government is desired, and as to whether the members of the board shall be elected by the county at large or by districts. The form of ballot shall be as provided in the next section.

Section 2773-n. Whenever two hundred or more qualified voters in any such county shall petition the circuit court or the judge thereof in vacation for said purpose, said court or judge shall by order entered of record require the judges of election, on the day fixed in said order, not less than thirty days from the date of such order, to open a poll and take the sense of the qualified voters of the county on the questions submitted as hereinafter provided for. In the calling and holding of said election, the same procedure shall be followed as is provided in section twenty-seven hundred and thirty-nine of the Code except that the ballot shall have written or printed thereon the following:

Question 1. Shall the county change its form of government For Against (Strike out one)

Question 2. In the event of such change, which form of government shall be adopted
Modified commission plan or County manager plan (Strike out one)

Question 3. In the event of such change, shall the governing board be elected at large or by districts At large By districts (Strike out one)

The commissioners of election shall ascertain whether a majority of the qualified voters of the county voting on the question are in favor of changing its form of government and, if so, whether the form shall

[Page 456, seq 462]

456 [VA. ACTS OF ASSEMBLY

be the commission plan or the county manager plan, and whether the governing board shall be elected by the county at large or by districts and make report thereof to the circuit court of the county or to the judge thereof in vacation. If it appears from such report that a majority of the qualified voters of the county, voting on the question, are in favor of the change, the circuit court, at its next term, shall enter of record such fact and such additional facts as to the form of county government adopted and as to whether the governing board shall be elected by the county at large or by districts. From and after the date on which the officers first elected under the provisions of this chapter shall take office, the form of government of such county shall be in accordance with this act. When either of the forms of county government provided herein shall be adopted for any county in the manner herein prescribed, the members of the county board shall be elected at the next succeeding regular election and shall take and hold office for a term of four years beginning on the first day of January after their election. The salary of each member of the board shall be six hundred dollars per annum.